

UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.

Before the Honorable Clark S. Cheney
Chief Administrative Law Judge

In the Matter of

CERTAIN SEMICONDUCTOR
DEVICES, PRODUCTS CONTAINING
SAME, AND COMPONENTS THEREOF

Investigation No. 337-TA-1500

RESPONSE OF RESPONDENTS TOWER SEMICONDUCTOR LTD., TOWER PARTNERS
SEMICONDUCTOR CO., LTD., TOWER SEMICONDUCTOR ITALY S.R.L., TOWER US
HOLDINGS, INC., TOWER SEMICONDUCTOR SAN ANTONIO, INC., TOWER
SEMICONDUCTOR NPB HOLDINGS, INC., TOWER SEMICONDUCTOR NEWPORT
BEACH, INC., AND NEWPORT FAB LLC TO THE COMPLAINT
AND NOTICE OF INVESTIGATION

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Counsel for Respondents Tower Semiconductor Ltd., Tower Partners Semiconductor Co., Ltd., Tower Semiconductor Italy S.r.l., Tower US Holdings, Inc., Tower Semiconductor San Antonio, Inc., Tower Semiconductor NPB Holdings, Inc., Tower Semiconductor Newport Beach, Inc., and Newport Fab LLC

PRELIMINARY STATEMENT

Pursuant to the United States International Trade Commission's Rules, 19 C.F.R. Part 210.13, Respondents Tower Semiconductor Ltd., Tower Partners Semiconductor Co., Ltd., Tower Semiconductor Italy S.r.l., Tower US Holdings, Inc., Tower Semiconductor San Antonio, Inc., Tower Semiconductor NPB Holdings, Inc., Tower Semiconductor Newport Beach, Inc., and Newport Fab LLC (collectively "Respondents" or "Tower") hereby respond to the Complaint filed by GlobalFoundries U.S. Inc. ("GlobalFoundries") on March 26, 2026 in the above-captioned Investigation and to the Notice of Institution ("Notice") issued by the United States International Trade Commission ("the Commission") on April 28, 2026 and as published in the Federal Register on April 30, 2026 (91 Fed. Reg. 23305-06).

Tower denies each allegation in the Complaint and Notice, except as expressly admitted herein. Tower's responses reflect the current status of its knowledge and belief regarding the subject matter of the allegations after a reasonable investigation, and are subject to additional or different information that may be discovered in the course of this proceeding. Tower reserves the right to amend or supplement its Response, to take further positions, and to raise additional defenses as may become apparent due to additional information discovered after this Response is submitted.

Tower denies that it has violated any provision of Section 337. Tower further denies any violation of Section 337 through the importation, selling for importation, and/or selling after importation into the United States of any product that infringes, literally and/or under the doctrine of equivalents, directly, indirectly, contributorily, and/or by inducement, any asserted claim of U.S. Patent Nos. 8,330,235 ("the '235 Patent"); 8,507,983 ("the '983 Patent"); 9,093,425 ("the '425 Patent"); 9,865,546 ("the '546 Patent"); 10,062,748 ("the '748 Patent"); and 10,707,167 ("the '167 Patent") (collectively, "the Asserted Patents"). Tower denies that any asserted claim of the

Asserted Patents is valid and enforceable. Tower denies that GlobalFoundries is entitled to any relief in this proceeding. Any factual allegation admitted below is admitted only as to the specific facts stated, and not as to any purported conclusions, characterizations, implications, or speculations that might follow from the admitted facts.

RESPONSE TO THE COMPLAINT AND NOTICE OF INVESTIGATION

In response to the allegations set forth in the Complaint, Tower responds as follows:

I. INTRODUCTION¹

1.1. To the extent that Paragraph 1.1 contains conclusions of law, no response is required. Tower admits that GlobalFoundries has filed a Complaint under Section 337 of the Tariff Act of 1930, as amended, and that GlobalFoundries names Tower Semiconductor Ltd., Tower Partners Semiconductor Co., Ltd., Tower Semiconductor Italy S.r.l., Tower US Holdings, Inc., Tower Semiconductor San Antonio, Inc., Tower Semiconductor NPB Holdings, Inc., Tower Semiconductor Newport Beach, Inc., and Newport Fab LLC as Proposed Respondents. Tower denies that it has engaged in any unlawful importation into the United States, sale for importation, or sale within the United States after importation of any infringing product. Tower denies that any Tower product or process infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable Asserted Claim of any Asserted Patent. Tower admits that Exhibits 1-6 purport to be copies of the Asserted Patents. Tower further admits that Exhibits 7-12 purport to be copies of the Assignment Records for each of the Asserted Patents. Tower denies all remaining allegations of Paragraph 1.1.

1.2. To the extent that Paragraph 1.2 contains conclusions of law, no response is required. Tower is without knowledge or information sufficient to form a belief as to the truth of GlobalFoundries' characterizations of itself, and on that basis denies those allegations. Tower denies that any Tower product or process infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable Asserted Claim of any Asserted Patent. Tower denies that it has engaged in any unlawful importation, sale for importation, or sale within the United

¹ Tower adopts the headings used in the complaint solely for ease of reference. Any factual and legal allegations or characterizations in the headings are denied.

States after importation of any infringing product. Tower denies all remaining allegations of Paragraph 1.2.

1.3. To the extent that Paragraph 1.3 contains conclusions of law, no response is required. Tower denies that it has “unlawfully used and profited from” GlobalFoundries’ alleged innovations. Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 1.3, and on that basis denies those allegations.

1.4. To the extent that Paragraph 1.4 contains conclusions of law, no response is required. Tower is without knowledge or information sufficient to form a belief as to the truth of the allegations of Paragraph 1.4, and on that basis denies those allegations.

1.5. To the extent that Paragraph 1.5 contains conclusions of law, no response is required. Tower is without knowledge or information sufficient to form a belief as to the truth of the allegations of Paragraph 1.5, and on that basis denies those allegations.

1.6. To the extent that Paragraph 1.6 contains conclusions of law, no response is required. Tower denies that it has “chronically underinvested in research and development relative to its U.S. peers.” Tower denies that it employs a “lowest-investment model.” Tower denies that it has “struggled at times to survive.” Tower denies that it “spend[s] far less than the multiple billions required to compete lawfully.” Tower denies that its “history of investment in R&D is [] meager.” Tower admits that it conducts operations in Israel, Japan, Europe, and the United States. Tower denies all remaining allegations of Paragraph 1.6.

1.7. To the extent that Paragraph 1.7 contains conclusions of law, no response is required. Tower denies that it “profits by offering products that incorporate innovations protected by [GlobalFoundries’] U.S. patents.” Tower denies that it “undercuts market pricing in the RF and power management segments, capturing share through low pricing strategies made possible by

avoiding, via infringement, the cost of the original R&D borne by GlobalFoundries.” Tower denies that it has engaged in any unlawful importation into the United States, sale for importation, or sale within the United States after importation of any infringing product. Tower denies that any Tower product or process infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable Asserted Claim of any Asserted Patent. Tower denies all remaining allegations of Paragraph 1.7.

1.8. To the extent that Paragraph 1.8 contains conclusions of law, no response is required. Tower admits that GlobalFoundries purports to seek “a limited exclusion order[,]” “cease and desist orders[,]” and the “imposition of a bond during the Presidential Review Period.” Tower denies that it has engaged in any unlawful importation into the United States, sale for importation, or sale within the United States after importation of any infringing product. Tower denies that any Tower product or process infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable Asserted Claim of any Asserted Patent. Tower denies that GlobalFoundries is entitled to any such relief. Tower denies all remaining allegations of Paragraph 1.8.

1.9. To the extent that Paragraph 1.9 contains conclusions of law, no response is required. Tower denies that a domestic industry as defined in 19 U.S.C. §§ 1337(a)(2) and (a)(3) exists in the United States in connection with the Asserted Patents. Tower denies all remaining allegations of Paragraph 1.9.

II. COMPLAINANT

2.1. Tower admits that GlobalFoundries is the Complainant in this Investigation. Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations contained in Paragraph 2.1, and on that basis denies those allegations.

III. PROPOSED RESPONDENTS

3.1. To the extent that Paragraph 3.1 contains conclusions of law, no response is required. Tower admits that the Proposed Respondents are Tower Semiconductor Ltd. (Israel); Tower Partners Semiconductor Co., Ltd. (Japan); Tower Semiconductor Italy S.r.l. (Italy); Tower US Holdings, Inc.; Tower Semiconductor San Antonio, Inc.; Tower Semiconductor NPB Holdings, Inc.; Tower Semiconductor Newport Beach, Inc.; and Newport Fab LLC. Tower denies that it has engaged in any unlawful importation into the United States, sale for importation, or sale within the United States after importation of any infringing product. Tower denies that any Tower product or process infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable Asserted Claim of any Asserted Patent. Tower denies all remaining allegations of Paragraph 3.1.

IV. THE TECHNOLOGY AND PRODUCTS-AT-ISSUE

4.1. To the extent that Paragraph 4.1 contains conclusions of law, no response is required. Tower admits that “[t]his investigation generally concerns semiconductor devices and/or methods of manufacturing semiconductor devices.” Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 4.1, and on that basis denies those allegations.

4.2. Tower denies that it has engaged in any unlawful importation into the United States, sale for importation, or sale within the United States after importation of any infringing product. Tower denies all remaining allegations of Paragraph 4.2.

4.3. To the extent that Paragraph 4.3 contains conclusions of law, no response is required. Tower admits that GlobalFoundries purports to accuse “certain semiconductor devices manufactured using Tower’s RF, power management, BCD, logic, SiGe, and BiCMOS processes, including wafers

and chips, and components thereof.” Tower denies that it has engaged in any unlawful importation into the United States, sale for importation, or sale within the United States after importation of any infringing product. Tower denies that any Tower product or process infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable Asserted Claim of any Asserted Patent. Tower denies all remaining allegations of Paragraph 4.3.

4.4. To the extent that Paragraph 4.4 contains conclusions of law, no response is required. Tower denies that it has engaged in any unlawful importation into the United States, sale for importation, or sale within the United States after importation of any infringing product. Tower denies all remaining allegations of Paragraph 4.4.

4.5. To the extent that Paragraph 4.5 contains conclusions of law, no response is required. Tower denies that the Accused Products infringe, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable Asserted Claim of any Asserted Patent. Tower denies all remaining allegations of Paragraph 4.5.

V. THE ASSERTED PATENTS AND NON-TECHNICAL DESCRIPTION OF THE INVENTIONS

5.1. Tower admits that purported copies of the prosecution histories for the Asserted Patents have been submitted with the Complaint as Appendices A-F, and that copies of the prosecution histories for any priority applications have been submitted as Appendices G-H.

5.2. Tower admits that a purported list of foreign patents and patent applications corresponding to each Asserted Patent is attached as Exhibit 24.

5.3. Tower admits that GlobalFoundries has submitted a purported list of entities believed to be licensed to the Asserted Patents as Confidential Exhibit 25.

A. U.S. Patent No. 8,330,235

1. Identification of the Patent and Ownership by GlobalFoundries

5.4. To the extent that Paragraph 5.4 contains conclusions of law, no response is required. Tower admits that U.S. Patent No. 8,330,235, titled “METHOD TO REDUCE MOL DAMAGE ON NISI,” was issued by the USPTO on December 11, 2012, from Application No. 13/096,511, filed April 28, 2011. Tower admits that Exhibit 1 purports to be a copy of the ’235 Patent. Tower denies all remaining allegations of Paragraph 5.4.

5.5. To the extent that Paragraph 5.5 contains conclusions of law, no response is required. Tower admits that “GlobalFoundries is asserting claims 1, 5-9, 10, 11, 12, and 15-19 of the ’235 Patent in this Investigation.” Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 5.5, and on that basis denies those allegations.

5.6. To the extent that Paragraph 5.6 contains conclusions of law, no response is required. Tower denies that the asserted claims of the ’235 Patent are “valid, enforceable, and currently in full force and effect.” Tower admits that Exhibit 7 purports to be a copy of the assignment history of the ’235 Patent. Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 5.6, and on that basis denies those allegations.

2. Non-Technical Description of the Patent

5.7. To the extent that Paragraph 5.7 contains conclusions of law, no response is required. Tower denies that Paragraph 5.7 contains a complete and accurate description of the ’235 Patent. Tower denies all remaining allegations of Paragraph 5.7.

B. U.S. Patent No. 8,507,983

1. Identification of the Patent and Ownership by GlobalFoundries

5.8. To the extent that Paragraph 5.8 contains conclusions of law, no response is required. Tower admits that U.S. Patent No. 8,507,983, titled “HIGH VOLTAGE DEVICE,” was issued by the USPTO on August 13, 2013, from Application No. 13/550,571, filed July 16, 2012. Tower admits that Exhibit 2 purports to be a copy of the ’983 Patent. Tower denies all remaining allegations of Paragraph 5.8.

5.9. To the extent that Paragraph 5.9 contains conclusions of law, no response is required. Tower admits that “GlobalFoundries is asserting claims 1-7, 13-18, and 20 of the ’983 Patent in this Investigation.” Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 5.9, and on that basis denies those allegations.

5.10. To the extent that Paragraph 5.10 contains conclusions of law, no response is required. Tower denies that the asserted claims of the ’983 Patent are “valid, enforceable, and currently in full force and effect.” Tower admits that Exhibit 8 purports to be a copy of the assignment history of the ’983 Patent. Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 5.10, and on that basis denies those allegations.

2. Non-Technical Description of the Patent

5.11. To the extent that Paragraph 5.11 contains conclusions of law, no response is required. Tower denies that Paragraph 5.11 contains a complete and accurate description of the ’983 Patent. Tower denies all remaining allegations of Paragraph 5.11.

5.12. To the extent that Paragraph 5.12 contains conclusions of law, no response is required. Tower denies that Paragraph 5.12 contains a complete and accurate description of the '983 Patent. Tower denies all remaining allegations of Paragraph 5.12.

C. U.S. Patent No. 9,093,425

1. Identification of the Patent and Ownership by GlobalFoundries

5.13. To the extent that Paragraph 5.13 contains conclusions of law, no response is required. Tower admits that U.S. Patent No. 9,093,425, titled "SELF-ALIGNED LINER FORMED ON METAL SEMICONDUCTOR ALLOY CONTACTS," was issued by the USPTO on July 28, 2015, from Application No. 14/177,481, filed February 11, 2014. Tower admits that Exhibit 3 purports to be a copy of the '425 Patent. Tower denies all remaining allegations of Paragraph 5.13.

5.14. To the extent that Paragraph 5.14 contains conclusions of law, no response is required. Tower admits that "GlobalFoundries is asserting claims 1-9 of the '425 Patent in this Investigation." Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 5.14, and on that basis denies those allegations.

5.15. To the extent that Paragraph 5.15 contains conclusions of law, no response is required. Tower denies that the asserted claims of the '425 Patent are "valid, enforceable, and currently in full force and effect." Tower admits that Exhibit 9 purports to be a copy of the assignment history of the '425 Patent. Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 5.15, and on that basis denies those allegations.

2. Non-Technical Description of the Patent

5.16. To the extent that Paragraph 5.16 contains conclusions of law, no response is required. Tower denies that Paragraph 5.16 contains a complete and accurate description of the '425 Patent. Tower denies all remaining allegations of Paragraph 5.16.

5.17. To the extent that Paragraph 5.17 contains conclusions of law, no response is required. Tower denies that Paragraph 5.17 contains a complete and accurate description of the '425 Patent. Tower denies all remaining allegations of Paragraph 5.17.

D. U.S. Patent No. 9,865,546

1. Identification of the Patent and Ownership by GlobalFoundries

5.18. To the extent that Paragraph 5.18 contains conclusions of law, no response is required. Tower admits that U.S. Patent No. 9,865,546, titled "CONTACTS TO SEMICONDUCTOR SUBSTRATE AND METHODS OF FORMING SAME," was issued by the USPTO on January 9, 2018, from Application No. 14/729,298, filed June 3, 2015. Tower admits that Exhibit 4 purports to be a copy of the '546 Patent. Tower denies all remaining allegations of Paragraph 5.18.

5.19. To the extent that Paragraph 5.19 contains conclusions of law, no response is required. Tower admits that "GlobalFoundries is asserting claims 1-7 and 8-14 of the '546 Patent in this Investigation." Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 5.19, and on that basis denies those allegations.

5.20. To the extent that Paragraph 5.20 contains conclusions of law, no response is required. Tower denies that the asserted claims of the '546 Patent are "valid, enforceable, and currently in full force and effect." Tower admits that Exhibit 10 purports to be a copy of the assignment history of the '546 Patent. Tower is without knowledge or information sufficient to form

a belief as to the truth of the remaining allegations of Paragraph 5.20, and on that basis denies those allegations.

2. Non-Technical Description of the Patent

5.21. To the extent that Paragraph 5.21 contains conclusions of law, no response is required. Tower denies that Paragraph 5.21 contains a complete and accurate description of the '546 Patent or its asserted claims. Tower denies all remaining allegations of Paragraph 5.21.

E. U.S. Patent No. 10,062,748

1. Identification of the Patent and Ownership by GlobalFoundries

5.22. To the extent that Paragraph 5.22 contains conclusions of law, no response is required. Tower admits that U.S. Patent No. 10,062,748, titled "SEGMENTED GUARD-RING AND CHIP EDGE SEALS," was issued by the USPTO on August 28, 2018, from Application No. 15/443,276, filed February 27, 2017. Tower admits that Exhibit 5 purports to be a copy of the '748 Patent. Tower denies all remaining allegations of Paragraph 5.22.

5.23. To the extent that Paragraph 5.23 contains conclusions of law, no response is required. Tower admits that "GlobalFoundries is asserting claims 1-12, 14, and 16-18 of the '748 Patent in this Investigation." Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 5.23, and on that basis denies those allegations.

5.24. To the extent that Paragraph 5.24 contains conclusions of law, no response is required. Tower denies that the asserted claims of the '748 Patent are "valid, enforceable, and currently in full force and effect." Tower admits that Exhibit 11 purports to be a copy of the assignment history of the '748 Patent. Tower is without knowledge or information sufficient to form

a belief as to the truth of the remaining allegations of Paragraph 5.24, and on that basis denies those allegations.

2. Non-Technical Description of the Patent

5.25. To the extent that Paragraph 5.25 contains conclusions of law, no response is required. Tower denies that Paragraph 5.25 contains a complete and accurate description of the '748 Patent. Tower denies all remaining allegations of Paragraph 5.25.

F. U.S. Patent No. 10,707,167

1. Identification of the Patent and Ownership by GlobalFoundries

5.26. To the extent that Paragraph 5.26 contains conclusions of law, no response is required. Tower admits that U.S. Patent No. 10,707,167, titled "CONTACTS TO SEMICONDUCTOR SUBSTRATE AND METHODS OF FORMING SAME," was issued by the USPTO on July 7, 2020, from Application No. 15/826,939, filed November 30, 2017. Tower admits that Exhibit 6 purports to be a copy of the '167 Patent. Tower denies all remaining allegations of Paragraph 5.26.

5.27. To the extent that Paragraph 5.27 contains conclusions of law, no response is required. Tower admits that "GlobalFoundries is asserting claims 1-6 of the '167 Patent in this Investigation." Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 5.27, and on that basis denies those allegations.

5.28. To the extent that Paragraph 5.28 contains conclusions of law, no response is required. Tower denies that the asserted claims of the '167 Patent are "valid, enforceable, and in full force and effect." Tower admits that Exhibit 12 purports to be a copy of the assignment history of the '167 Patent. Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 5.28, and on that basis denies those allegations.

2. Non-Technical Description of the Patent

5.29. To the extent that Paragraph 5.29 contains conclusions of law, no response is required. Tower denies that Paragraph 5.29 contains a complete and accurate description of the '167 Patent or its asserted claims. Tower denies all remaining allegations of Paragraph 5.29.

VI. UNLAWFUL AND UNFAIR ACTS OF RESPONDENTS

6.1. To the extent that Paragraph 6.1 contains conclusions of law, no response is required. Tower denies that it has engaged in any unlawful or unfair acts. Tower denies all remaining allegations of Paragraph 6.1.

6.2. To the extent that Paragraph 6.2 contains conclusions of law, no response is required. Tower denies that it has engaged in any unlawful or unfair acts. Tower denies all remaining allegations of Paragraph 6.2.

A. Infringement of U.S. Patent No. 8,330,235

6.3. To the extent that Paragraph 6.3 contains conclusions of law, no response is required. Tower denies that it imports, sells for importation, or sells within the United States after importation any Accused Product that infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable asserted claim of the '235 Patent. Tower denies that devices manufactured using Tower's RF processes, including its 65nm RF process, or the Qorvo QM81026 Power Tracker, infringe, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable claim of the '235 Patent. Tower denies all remaining allegations of Paragraph 6.3.

6.4. Tower admits that a claim chart is attached as Exhibit 28. Tower denies the substance and conclusions of Exhibit 28. Tower denies that any Tower product or process infringes, either

directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable claim of the '235 Patent.

B. Infringement of U.S. Patent No. 8,507,983

6.5. To the extent that Paragraph 6.5 contains conclusions of law, no response is required. Tower denies that it imports, sells for importation, or sells within the United States after importation any Accused Product that infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable asserted claim of the '983 Patent. Tower denies that products manufactured using Tower's BCD processes, including its TS18SOI process, or the PA22BZdie in the Qorvo PAC22140 Evaluation Kit, infringe, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable claim of the '983 Patent. Tower denies all remaining allegations of Paragraph 6.5.

6.6. Tower admits that a claim chart is attached as Exhibit 31. Tower denies the substance and conclusions of Exhibit 31. Tower denies that any Tower product or process infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable claim of the '983 Patent.

C. Infringement of U.S. Patent No. 9,093,425

6.7. To the extent that Paragraph 6.7 contains conclusions of law, no response is required. Tower denies that it imports, sells for importation, or sells within the United States after importation any Accused Product that infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable asserted claim of the '425 Patent. Tower denies that products manufactured using Tower's SiGe and BiCMOS processes, including the SBC18 process, or its RF processes, including its 65nm RF process, or the M7DN25PS die in the DENSO DNSRR004 Blind Spot Monitor Sensor or the Qorvo QM81026 Power Tracker, infringe, either directly or indirectly,

literally or under the doctrine of equivalents, any valid and enforceable claim of the '425 Patent. Tower denies all remaining allegations of Paragraph 6.7.

6.8. Tower admits that claim charts are attached as Exhibits 34 and 35. Tower denies the substance and conclusions of Exhibits 34 and 35. Tower denies that any Tower product or process infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable claim of the '425 Patent.

D. Infringement of U.S. Patent No. 9,865,546

6.9. To the extent that Paragraph 6.9 contains conclusions of law, no response is required. Tower denies that it imports, sells for importation, or sells within the United States after importation any Accused Product that infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable asserted claim of the '546 Patent. Tower denies that products manufactured using Tower's SiGe and BiCMOS processes, including the SBC18 process, or its RF processes, including its 65nm RF process, or the M7DN25PS die in the DENSO DNSRR004 Blind Spot Monitor Sensor or the Qorvo QM81026 Power Tracker, infringe, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable claim of the '546 Patent. Tower denies all remaining allegations of Paragraph 6.9.

6.10. Tower admits that claim charts are attached as Exhibits 36 and 37. Tower denies the substance and conclusions of Exhibits 36 and 37. Tower denies that any Tower product or process infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable claim of the '546 Patent.

E. Infringement of U.S. Patent No. 10,062,748

6.11. To the extent that Paragraph 6.11 contains conclusions of law, no response is required. Tower denies that it imports, sells for importation, or sells within the United States after

importation any Accused Product that infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable asserted claim of the '748 Patent. Tower denies that products manufactured using Tower's BCD processes, including its TS18SOI process, or the PA22BZdie in the Qorvo PAC22140 Evaluation Kit, infringe, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable claim of the '748 Patent. Tower denies all remaining allegations of Paragraph 6.11.

6.12. Tower admits that a claim chart is attached as Exhibit 38. Tower denies the substance and conclusions of Exhibit 38. Tower denies that any Tower product or process infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable claim of the '748 Patent.

F. Infringement of U.S. Patent No. 10,707,167

6.13. To the extent that Paragraph 6.13 contains conclusions of law, no response is required. Tower denies that it imports, sells for importation, or sells within the United States after importation any Accused Product that infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable asserted claim of the '167 Patent. Tower denies that products manufactured using Tower's SiGe and BiCMOS processes, including the SBC18 process, or its RF processes, including its 65nm RF process, or the M7DN25PS die in the DENSO DNSRR004 Blind Spot Monitor Sensor or the Qorvo QM81026 Power Tracker, infringe, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable claim of the '167 Patent. Tower denies all remaining allegations of Paragraph 6.13.

6.14. Tower admits that claim charts are attached as Exhibits 39 and 40. Tower denies the substance and conclusions of Exhibits 39 and 40. Tower denies that any Tower product or process

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infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable claim of the '167 Patent.

VII. SPECIFIC INSTANCES OF UNFAIR IMPORTATION AND SALE

7.1. To the extent that Paragraph 7.1 contains conclusions of law, no response is required. Tower denies that it has engaged in any unlawful importation into the United States, sale for importation, or sale within the United States after importation of any infringing product. Tower denies all remaining allegations of Paragraph 7.1.

7.2. To the extent that Paragraph 7.2 contains conclusions of law, no response is required. Tower denies that the specific instances set forth in the Complaint represent any unlawful importation, sale for importation, or sale within the United States of infringing products. Tower denies all remaining allegations of Paragraph 7.2.

A. The Qorvo PAC22140 Evaluation Kit

7.3. [REDACTED] Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 7.3, and on that basis denies those allegations.

7.4. Tower admits that Exhibit 29 purports to be a set of receipts and Exhibit 30 purports to be photographs of the purchased PAC22140EVK1. Tower denies that any Tower-manufactured product infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable asserted claim of any Asserted Patent. Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 7.4, and on that basis denies those allegations.

B. The Qorvo QM81026 RF Power Tracker

7.5. Tower admits that Exhibits 26 and 27 purport to be a receipt and photographs, respectively, relating to the Qorvo QM81026 RF Power Tracker. [REDACTED]

[REDACTED] Tower denies that any Tower-manufactured product infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable asserted claim of any Asserted Patent. Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 7.5, and on that basis denies those allegations.

C. The Denso DNSRR004

7.6. Tower admits that it issued a press release on or about August 14, 2017 announcing that DENSO Corporation utilized TowerJazz's 0.18 μ m SiGe technology. Tower denies that its press release constitutes any admission. [REDACTED]

Tower admits that Exhibit 32 purports to be a receipt and photographs relating to the Toyota Blind Spot Monitor Sensor and that Exhibit 33 purports to be photographs of the Toyota Blind Spot Monitor Sensor. Tower denies that any Tower-manufactured product infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable asserted claim of any Asserted Patent. Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 7.6, and on that basis denies those allegations.

VIII. HARMONIZED TARIFF SCHEDULE ITEM NUMBERS

8.1. Tower admits that the Harmonized Tariff Schedule item number 8541.59.0040 (unmounted chips, dice, and wafers) may be one classification applicable to certain semiconductor devices. Tower is without knowledge or information sufficient to form a belief as to the applicable Harmonized Tariff Schedule classification(s) for the Accused Products, and on that basis denies

those allegations. Tower denies that any of its products constitute “infringing semiconductor devices.” Tower denies that any Tower-manufactured product infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable asserted claim of any Asserted Patent. Tower denies all remaining allegations of Paragraph 8.1.

IX. DOMESTIC INDUSTRY

9.1. To the extent that Paragraph 9.1 contains conclusions of law, no response is required. Tower denies that a domestic industry as defined in 19 U.S.C. §§ 1337(a)(2) and (a)(3) exists in the United States in connection with the Asserted Patents by virtue of GlobalFoundries’ activities. Tower denies that the Asserted Patents are practiced by GlobalFoundries’ Domestic Industry Products or processes. Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 9.1, and on that basis denies those allegations.

A. The Economic Prong of the Domestic Industry

9.2. To the extent that Paragraph 9.2 contains conclusions of law, no response is required. Tower denies that “[a] domestic industry under subparts (A) and (B) of Section 337(a)(3) exists by virtue of GlobalFoundries’ activities within the United States” in connection with the Asserted Patents. Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 9.2, and on that basis denies those allegations.

9.3. To the extent that Paragraph 9.3 contains conclusions of law, no response is required. Tower denies that GlobalFoundries’ alleged domestic industry activities satisfy the requirements of Section 337 with respect to the Asserted Patents. Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations regarding GlobalFoundries’ activities in Paragraph 9.3, and on that basis denies those allegations. Tower denies all remaining allegations of Paragraph 9.3.

B. The Technical Prong of the Domestic Industry

9.4. To the extent that Paragraph 9.4 contains conclusions of law, no response is required. Tower denies that a domestic industry exists or is being established in the United States in connection with the Asserted Patents as required by Section 337. Tower denies all allegations of Paragraph 9.4.

9.5. To the extent that Paragraph 9.5 contains conclusions of law, no response is required. Tower admits that GlobalFoundries has submitted claim charts and related information as Confidential Exhibits 50-55. Tower denies the substance and conclusions of those exhibits. Tower denies that GlobalFoundries' products or processes practice any valid and enforceable asserted claim of any Asserted Patent. Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 9.5, and on that basis denies those allegations.

9.6. To the extent that Paragraph 9.6 contains conclusions of law, no response is required. Insofar as any response to Paragraph 9.6 is required, Tower is without knowledge or information sufficient to form a belief as to the truth of the allegations of Paragraph 9.6, and on that basis denies those allegations.

9.7. To the extent that Paragraph 9.7 contains conclusions of law, no response is required. Tower admits that Confidential Exhibit 50 purports to be a claim chart. Tower denies the substance and conclusions of Confidential Exhibit 50. Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 9.7, and on that basis denies those allegations.

9.8. To the extent that Paragraph 9.8 contains conclusions of law, no response is required. Tower admits that Confidential Exhibit 51 purports to be a claim chart. Tower denies the substance and conclusions of Confidential Exhibit 51. Tower is without knowledge or information sufficient

to form a belief as to the truth of the remaining allegations of Paragraph 9.8, and on that basis denies those allegations.

9.9. To the extent that Paragraph 9.9 contains conclusions of law, no response is required. Tower admits that Confidential Exhibit 52 purports to be a claim chart. Tower denies the substance and conclusions of Confidential Exhibit 52. Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 9.9, and on that basis denies those allegations.

9.10. To the extent that Paragraph 9.10 contains conclusions of law, no response is required. Tower admits that Confidential Exhibit 53 purports to be a claim chart. Tower denies the substance and conclusions of Confidential Exhibit 53. Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 9.10, and on that basis denies those allegations.

9.11. To the extent that Paragraph 9.11 contains conclusions of law, no response is required. Tower admits that Confidential Exhibit 54 purports to be a claim chart. Tower denies the substance and conclusions of Confidential Exhibit 54. Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 9.11, and on that basis denies those allegations.

9.12. To the extent that Paragraph 9.12 contains conclusions of law, no response is required. Tower admits that Confidential Exhibit 55 purports to be a claim chart. Tower denies the substance and conclusions of Confidential Exhibit 55. Tower is without knowledge or information sufficient to form a belief as to the truth of the remaining allegations of Paragraph 9.12, and on that basis denies those allegations.

X. RELATED LITIGATION

10.1. Tower admits that GlobalFoundries has filed a civil action in the U.S. District Court for the Western District of Texas asserting the Asserted Patents. Tower denies that GlobalFoundries' claims in that action have any merit and denies that any Tower product or process infringes, either directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable asserted claim of any Asserted Patent. Tower denies all remaining allegations of Paragraph 10.1.

10.2. Tower is without knowledge or information sufficient to form a belief as to the truth of the allegations regarding related litigation in Paragraph 10.2, and on that basis denies those allegations.

XI. RELIEF REQUESTED

11.1. To the extent that Paragraphs 11.1 through 11.7 contains conclusions of law, no response is required. Insofar as any response to Paragraphs 11.1 through 11.7 are required, Tower denies that GlobalFoundries is entitled to any of the requested relief, including without limitation any limited exclusion order, any cease and desist orders, any bond during the Presidential Review Period, or any other relief whatsoever. Tower denies that it has violated 19 U.S.C. § 1337. Tower denies all allegations of Paragraphs 11.1 through 11.7.

TOWER'S AFFIRMATIVE AND OTHER DEFENSES

Tower asserts the following additional affirmative and other defenses in response to the Complaint, undertaking the burden of proof only as to those defenses deemed affirmative defenses by law, regardless of how such defenses are denominated herein. Discovery has only recently begun, and Tower has not yet had sufficient time or opportunity to collect and review all information that may be relevant to the matters raised herein. Pursuant to 19 C.F.R. §§ 210.14(b) and 210.14(c), Tower expressly reserves the right to modify and/or expand these defenses, to assert additional defenses, and to take further positions as discovery proceeds. Furthermore, to the extent GlobalFoundries amends the Complaint and/or its contentions, Tower expressly reserves its right to amend this Response accordingly.

**FIRST DEFENSE
(NO INFRINGEMENT)**

1. Tower does not and has not directly or indirectly infringed, literally or under the doctrine of equivalents, any valid and enforceable claim of the Asserted Patents. GlobalFoundries bears the burden to prove infringement for each and every limitation of the Asserted Claims. It has failed to do so and will continue to fail to do so because there has been no infringement by Tower.

**SECOND DEFENSE
(PATENT INVALIDITY)**

2. The Asserted Claims of the Asserted Patents (and all other claims of the Asserted Patents) are invalid for failing to comply with one or more of the requirements of 35 U.S.C. §§ 101, 102, 103, 112, and/or 256.

3. With respect to 35 U.S.C. §§ 102 and 103, Tower provides a listing of the prior art known to Tower as of the timing of filing this Response as Appendix A. This prior art is exemplary and its inclusion is not intended to limit in any way Tower's defenses in this Investigation. Tower

reserves the right to rely upon any prior art cited on the face of the Asserted Patents, any statements made by the named inventors of the Asserted Patents, admissions made in the Asserted Patents and their respective prosecution histories, and any other information later identified.

4. With respect to 35 U.S.C. § 112, at least one of the Asserted Claims is invalid for failure to provide sufficient written description for the alleged invention, failure to enable a person of ordinary skill in the art to make and use the full scope of the invention without undue experimentation, and failure to inform a person of ordinary skill in the art of the scope of the invention with reasonable certainty.

5. With respect to 35 U.S.C. §§ 101 and 256, on information and belief, the Asserted Patents are invalid for failure to name the correct inventors and/or for omitting an inventor.

**THIRD DEFENSE
(NO DOMESTIC INDUSTRY)**

6. GlobalFoundries has failed to adequately allege, and cannot prove, that a domestic industry relating to articles that allegedly practice the Asserted Patents exists or is in the process of being established, as required by 19 U.S.C. § 1337(a)(2) and defined by 19 U.S.C. § 1337(a)(3).

**FOURTH DEFENSE
(LICENSE AND/OR EXHAUSTION)**

7. GlobalFoundries' allegations are barred, either in whole or in part, under the doctrine of express license, implied license, and/or patent exhaustion.

**FIFTH DEFENSE
(PROSECUTION HISTORY ESTOPPEL)**

8. GlobalFoundries is estopped from construing the Asserted Claims of the Asserted Patents to cover any Tower product under the doctrine of prosecution history estoppel because amendments, representations, omissions, and/or concessions made by the applicant, any predecessor-in-interest, and/or GlobalFoundries during prosecution of the Asserted Patents and/or

any related U.S. and/or foreign patents and patent applications limit the scope of the Asserted Claims.

**SIXTH DEFENSE
(ENSNAREMENT)**

9. GlobalFoundries' allegations of infringement under the doctrine of equivalents are barred by the doctrine of ensnarement to the extent GlobalFoundries' interpretation of the scope of equivalents would ensnare the prior art.

**SEVENTH DEFENSE
(NO STANDING)**

10. GlobalFoundries has failed to show that it has proper standing or ownership of the Asserted Patents. For example, on information and belief, third parties that are not joined as parties to this Investigation have ownership interest and/or rights in the Asserted Patents.

**EIGHTH DEFENSE
(NO UNFAIR ACT)**

11. Tower has not engaged in any unfair act or unfair competition cognizable under 19 U.S.C. § 1337.

**NINTH DEFENSE
(PUBLIC INTEREST)**

12. The relief requested by GlobalFoundries is not in the public interest. 19 U.S.C. § 1337(d)(1).

**TENTH DEFENSE
(OTHER DEFENSES)**

13. Tower reserves the right to amend its Response to include other affirmative defenses that it may learn of during the course of this Investigation, whether through discovery or otherwise.

CONCLUSION

Wherefore, Tower respectfully requests that the Commission:

- i. Deny all relief requested in the Complaint;
- ii. Determine that Tower has not violated 19 U.S.C. § 1337;
- iii. Determine that Tower does not directly or indirectly infringe any Asserted Claim of any Asserted Patent, either literally or under the doctrine of equivalents;
- iv. Determine that the Asserted Claims are invalid and/or unenforceable;
- v. Determine that there is no domestic industry for the Asserted Patents;
- vi. Determine that GlobalFoundries' requested relief is not in the public interest;
- vii. Deny any other relief requested by GlobalFoundries;
- viii. Award Tower its attorneys' fees and costs incurred in responding to the Complaint and defending this Investigation; and
- ix. Grant Tower such further relief as the Commission may deem just and proper.

RESPONSE TO NOTICE OF INVESTIGATION

1. Tower hereby responds to the Notice of Investigation issued by the Commission on April 28, 2026 and published in the Federal Register on April 30, 2026. Without admitting any of the specific or general allegations set forth in GlobalFoundries' Complaint as referenced in the Notice, Tower provides the following response:

2. Tower admits that the U.S. International Trade Commission has initiated an investigation as set forth in the Commission's Notice of Investigation issued on April 28, 2026 and published in the Federal Register on April 30, 2026 (90 Fed. Reg. 23305-06).

3. Tower admits that GlobalFoundries requested that an investigation be instituted and requested that the Commission issue a limited exclusion order and cease and desist orders.

4. Tower denies that there have been any violations of Section 337 of the Tariff Act arising from the importation in the United States, sale for importation, or sale within the United States after importation of any Accused Products by reason of alleged infringement of any valid and enforceable claim of the Asserted Patents.

5. GlobalFoundries' patent claims are barred by Tower's affirmative defenses. Tower also contends that the Asserted Claims of the Asserted Patents are invalid and/or unenforceable, and therefore cannot support any remedy for alleged infringement.

6. Tower further denies that a domestic industry exists as required by subsections (a)(2) and (a)(3) of Section 337 and therefore cannot support any violation of Section 337.

7. Tower respectfully denies that GlobalFoundries is entitled to any of the relief that it requests, or any other relief.

8. The information required by 19 C.F.R. § 210.13(b) is included in its own section below.

9. To the extent the Notice of Investigation recites allegations denied or admitted herein, Tower denies or admits those statements on the same bases.

INFORMATION REQUIRED UNDER COMMISSION RULE 210.13(B)

1. Pursuant to 19 C.F.R. § 210.13(b), Respondents Tower Semiconductor Ltd., Tower Partners Semiconductor, Ltd., Tower Semiconductor Italy S.r.l., Tower US Holdings, Inc., Tower Semiconductor San Antonio, Inc., Tower Semiconductor NPB Holdings, Inc., Tower Semiconductor Newport Beach, Inc., and Newport Fab LLC (collectively “Tower” or “Respondents”) provide the following information. Tower specifically denies that the information provided pursuant to 19 C.F.R. § 210.13(b) relates to, or supports a finding of, any unlawful act by Tower.

2. Tower does not manufacture, import, or sell the Qorvo PAC22140 Evaluation Kit, the Qorvo QM81026 RF Power Tracker, or the DENSO DNSRR004. In general, Tower manufactures semiconductor wafers at foundries in the United States, Italy, Japan, and Israel. The semiconductor wafers [REDACTED] The wafers are not imported by Tower into the United States and Tower therefore does not have information to provide regarding the amount and value of articles imported under 19 C.F.R. § 210.13(b).

3. Tower does not import the Qorvo PAC22140 Evaluation Kit, the Qorvo QM81026 RF Power Tracker, or the DENSO DNSRR004 into the United States. As a result, Tower cannot provide information regarding the appropriate HTSUS numbers.

4. [REDACTED]

[REDACTED] Tower believes that [REDACTED]

[REDACTED]

[REDACTED]

5. This information is preliminary in nature and will be supplemented and amended as appropriate.

Date: June 2, 2026

Respectfully Submitted,

/s/ Stephen R. Smith

Stephen R. Smith

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Samuel Whitt

Patrick Lauppe

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Holdings, Inc., Tower Semiconductor San

Antonio, Inc., Tower Semiconductor NPB

Holdings, Inc., Tower Semiconductor

Newport Beach, Inc., and Newport Fab LLC

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, DC**

**Before the Honorable Clark S. Cheney
Chief Administrative Law Judge**

In the Matter of

**CERTAIN SEMICONDUCTOR
DEVICES, PRODUCTS CONTAINING
SAME, AND COMPONENTS THEREOF**

Investigation No. 337-TA-1500

VERIFICATION

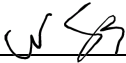
I, Nati Somekh, am employed as Senior Vice President, Chief Legal Officer and Corporate Secretary at Tower Semiconductor Ltd. and am authorized to sign this verification on behalf of Respondents Tower Semiconductor Ltd., Tower Partners Semiconductor, Ltd., Tower Semiconductor Italy S.r.l., Tower US Holdings, Inc., Tower Semiconductor San Antonio, Inc., Tower Semiconductor NPB Holdings, Inc., Tower Semiconductor Newport Beach, Inc. and Newport Fab LLC (collectively, "Tower"). I have read the **RESPONSE TO THE COMPLAINT AND NOTICE OF INVESTIGATION** and declare that, based upon reasonable inquiry under the circumstances, the facts set forth in this Response as they relate to Tower are true and correct to the best of my knowledge, information and belief. The allegations and contentions in this Response have evidentiary support after a reasonable opportunity for further investigation and discovery, to the best of my knowledge, information and belief.

This Response is not being presented for any improper purpose, such as to harass, to unnecessarily delay or to needlessly increase the costs of this investigation.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Dated: June 1, 2026

Respectfully Submitted,



Name: Nati Somekh
Title: Senior Vice President, Chief
Legal Officer and Corporate
Secretary
Company: Tower Semiconductor Ltd.

CERTIFICATE OF SERVICE

I hereby certify that on June 2, 2026, copies of the foregoing were filed with and served upon the following as indicated:

The Honorable Lisa Barton
Secretary to the Commission
U.S. INTERNATIONAL TRADE COMMISSION
500 E Street SW, Room 112
Washington, DC 20436

☐ Via First Class Mail
☒ Via EDIS
☐ Via Box
☐ Via Electronic Mail

The Honorable Clark S. Cheney
Chief Administrative Law Judge
U.S. INTERNATIONAL TRADE COMMISSION
500 E Street SW, Room 317
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